

STATE OF NEW YORK

3425--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. RAGA, GONZALEZ-ROJAS, KIM, SHIMSKY, SIMONE, KELLES, EPSTEIN, ALVAREZ, STECK, BURROUGHS, REYES -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public officers law, in relation to time frames for responding to requests for records under the freedom of information act

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 3 of section 89 of the public officers law, as
2 amended by chapter 223 of the laws of 2008 and paragraph (c) as added by
3 chapter 47 of the laws of 2018, is amended to read as follows:

4 3. (a) Each entity subject to the provisions of this article, within
5 five business days of the receipt of a written request for a record
6 reasonably described, shall make such record available to the person
7 requesting it, deny such request in writing or furnish a written
8 acknowledgement of the receipt of such request and a statement of the
9 approximate date, which shall be reasonable under the circumstances of
10 the request, when such request will be granted or denied, including,
11 where appropriate, a statement that access to the record will be deter-
12 mined in accordance with subdivision five of this section. An agency
13 shall not deny a request on the basis that the request is voluminous or
14 that locating or reviewing the requested records or providing the
15 requested copies is burdensome because the agency lacks sufficient
16 staffing or on any other basis if the agency may engage an outside
17 professional service to provide copying, programming or other services
18 required to provide the copy, the costs of which the agency may recover
19 pursuant to paragraph (c) of subdivision one of section eighty-seven of
20 this article. An agency may require a person requesting lists of names
21 and addresses to provide a written certification that such person will

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 not use such lists of names and addresses for solicitation or fund-raising
2 purposes and will not sell, give or otherwise make available such
3 lists of names and addresses to any other person for the purpose of
4 allowing that person to use such lists of names and addresses for solicitation
5 or fund-raising purposes. If an agency determines to grant a
6 request in whole or in part, and if circumstances prevent disclosure to
7 the person requesting the record or records within twenty business days
8 from the date of the acknowledgement of the receipt of the request, the
9 agency shall state, in writing, both the reason for the inability to
10 grant the request within twenty business days and a date certain within
11 a reasonable period, depending on the circumstances, when the request
12 will be granted in whole or in part, provided, however, that such date
13 certain shall meet the requirements of subdivision three-a of this
14 section. Upon payment of, or offer to pay, the fee prescribed therefor,
15 the entity shall provide a copy of such record and certify to the
16 correctness of such copy if so requested, or as the case may be, shall
17 certify that it does not have possession of such record or that such
18 record cannot be found after diligent search. Nothing in this article
19 shall be construed to require any entity to prepare any record not
20 possessed or maintained by such entity except the records specified in
21 subdivision three of section eighty-seven and subdivision three of
22 section eighty-eight of this article. When an agency has the ability to
23 retrieve or extract a record or data maintained in a computer storage
24 system with reasonable effort, it shall be required to do so. When doing
25 so requires less employee time than engaging in manual retrieval or
26 redactions from non-electronic records, the agency shall be required to
27 retrieve or extract such record or data electronically. Any programming
28 necessary to retrieve a record maintained in a computer storage system
29 and to transfer that record to the medium requested by a person or to
30 allow the transferred record to be read or printed shall not be deemed
31 to be the preparation or creation of a new record.

32 (b) All entities shall, provided such entity has reasonable means
33 available, accept requests for records submitted in the form of electronic
34 mail and shall respond to such requests by electronic mail, using
35 forms, to the extent practicable, consistent with the form or forms
36 developed by the committee on open government pursuant to subdivision
37 one of this section and provided that the written requests do not seek a
38 response in some other form.

39 (c) Each state agency, as defined in subdivision five of this section,
40 that maintains a website shall ensure its website provides for the
41 online submission of a request for records pursuant to this article.

42 § 2. Section 89 of the public officers law is amended by adding a new
43 subdivision 3-a to read as follows:

44 3-a. (a) Agencies must make records available to the person requesting
45 them within the timeframes below if such agency has determined to grant
46 a request in whole or in part:

47 (i) within one hundred eighty days for requests made prior to December
48 thirty-first, two thousand twenty-six;

49 (ii) within ninety days for requests made between January first, two
50 thousand twenty-seven, and December thirty-first, two thousand twenty-
51 seven; or

52 (iii) within sixty days for requests made on or after January first,
53 two thousand twenty-eight.

54 (b) If an agency determines that records cannot be made available
55 within the relevant timeframe, such agency may instead make the records
56 available as soon as possible if one or more of these conditions apply:

1 (i) federal law or regulation prevents the agency from reviewing or
2 providing responsive records within the relevant timeframe;

3 (ii) agency employees are unable to safely access responsive records;
4 or

5 (iii) responsive records are so voluminous that the agency could not
6 reasonably review such records within the relevant timeframe.

7 (c) If the agency makes such determination, it shall notify the person
8 who made the request in writing. Such notification shall explain in
9 detail why the agency is unable to provide the records within the
10 required timeframe and what efforts are being undertaken to make the
11 records available as soon as possible. The agency shall also provide the
12 person who made the request monthly updates on progress. The agency
13 shall also notify the committee on open government in writing. The
14 notifications to both the requestor and the committee shall be signed by
15 the agency's commissioner.

16 § 3. This act shall take effect January 1, 2026.